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Abel Chavez v. Krazy J's, Case No. 19STCV46265

ORDER ON DEFENDANTS' MOTION TO VACATE JUDGMENT AND PLAINTIFF'S MOTION FOR NEW TRIAL

1. Defendants Fox Theater, LLC and Fox Theater Manager, LLC's motion to vacate judgment is DENIED.
2. Plaintiff Abel Chavez's motion for a new trial is DENIED. Plaintiff's alternative request for a conditional additur is DENIED.

Background

Plaintiff Abel Chavez ("Plaintiff") brought this lawsuit following an alleged assault that occurred on or about February 1, 2029 just outside of Krazy J's Grill ("Krazy J's"), a bar located in Pomona, California.

On December 26, 2019, Plaintiff filed a complaint, asserting causes of action against Krazy J's and Does 1-100 for: (1) negligence, (2) premises liability, (3) negligent hiring, training, supervision, and retention of security guards, and (4) battery.

On July 2, 2020, Plaintiff filed an "Amendment to Complaint," wherein "S&J Pomona, LLC" was named in lieu of Doe 1. On August 13, 2021, Plaintiff filed two "Amendment[s] to Complaint," wherein Steve Melnick ("Melnick") was named in lieu of Doe 2 and Pomona Fox Theater Master Tenant, LLC ("Pomona Fox Master") was named in lieu of Doe 3.

On October 29, 2021, Pomona Fox Master filed a cross-complaint, asserting causes of action against Krazy J's Grill and Roes 1-50 for: (1) equitable indemnity, (2) contribution, (3) breach of contract, (4) express indemnity, (5) negligence, (6) declaratory relief, and (7) declaratory relief re: duty to defend.

On February 28, 2022, this case was transferred from Department 29 of the Personal Injury Court to Department K of the Pomona Courthouse.

On November 15, 2022, Plaintiff filed four "Amendment[s] to Complaint," wherein Pomona Fox Theater, LLC ("Pomona Fox Theater") was named in lieu of Doe 4, Pomona Fox Theater Manager, LLC ("Pomona Fox Manager") was named in lieu of Doe 5, Pomona Fox Concessions, LLC ("Pomona Fox Concessions") was named in lieu of Doe 6, and Daniel Leon ("Leon") was named in lieu of Doe 7.

On February 14, 2023, Pomona Fox Concessions, Pomona Fox Manager, and Pomona Fox Theater filed a cross-complaint, asserting causes of action against Krazy J's and Roes 1-50 for: (1) equitable indemnity, (2) contribution, (3) breach of contract, (4) express indemnity, (5) negligence, (6) declaratory relief, and (7) declaratory relief re: duty to defend.

On May 25, 2023, a "Stipulation and Order Regarding Liability of Defendant Steve Melnick and Bifurcate Trial/Discovery on Alter Ego" was entered.

On April 5, 2024, Pomona Fox Concessions, et al. dismissed their February 14, 2023 cross-complaint, without prejudice; that day, Pomona Fox Master dismissed its October 29, 2021 cross-complaint, without prejudice.

On August 5, 2024, this case was transferred to the instant department (Department H of the Pomona Courthouse).

On October 8, 2024, an "Order Granting Ex Parte Application for an Order to Bifurcate Trial and Bifurcating the Liability and Damages Portions of Trial" was entered.

On March 13, 2025, a "Stipulation and Order to Reopen Liability Discovery on a Limited Basis" was entered.

On November 17, 2025, a "Stipulation and Order Re Five-Year Deadline" was entered.

On December 2, 2025, this matter proceeded to jury trial (i.e., Phase 1—Liability). [FN1] On December 16, 2025, the jury issued its verdict; on that date, counsel stipulated to extend the five-year rule as to Phase 2 to July 31, 2026, and jury trial (Phase 2—Damages) was scheduled for June 23, 2026.

On January 23, 2026, the Court set an alter ego bench trial for June 23, 2026, with the alter ego trial to trail the damages trial.[FN2]

On June 30, 2026, this matter proceeded to jury trial (i.e., Phase 2—Damages). On July 13, 2026, the special verdict was entered.

On July 20, 2026, judgment was entered. On July 27, 2026, Plaintiff filed (and electronically served) a "Notice of Entry of Judgment."

Pending before the Court are: (1) Defendants Fox Theater, LLC and Fox Theater Manager, LLC's motion to vacate judgment and (2) Plaintiff's motion for a new trial. For the reasons stated herein, both motions are denied.

1. Defendants Fox Theater, LLC and Fox Theater Manager, LLC's Motion to Vacate Judgment

Legal Standard

"A judgment or decree . . . may . . . be set aside and vacated . . . for either of the following causes, materially affecting the substantial rights of the party and entitling the party to a different judgment: (1) [i]ncorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts . . . ; [and] (2) [a] judgment or decree not consistent with or not supported by the special verdict." (Code Civ. Proc., § 663.)

To file such a motion, a party must “designat[e] the grounds upon which the motion will be made, and specifying the particulars in which the legal basis for the decision is not consistent with or supported by the facts, or in which the judgment or decree is not consistent with the special verdict . . . [w]ithin 15 days of . . . service upon him or her by any party of written notice of entry of judgment, or within 180 days after the entry of judgment, whichever is earliest.” (Code Civ. Proc., § 663a, subd. (a).)

The Court’s power to rule on the motion expires 75 days from notice of entry of judgment; if not determined within the timeframe, the motion is deemed denied. (Code Civ. Proc., § 663a, subd. (b).)

Discussion

Defendants Fox Theater, LLC and Fox Theater Manager, LLC (the “Fox Defendants”) move the Court for an order, per Code of Civil Procedure section 663, vacating the judgment entered on July 27, 2026.

Timeliness

The motion was timely filed under Code of Civil Procedure section 663a. [FN3]

Merits

On December 16, 2025, the jury empaneled for the liability phase of trial entered a verdict finding that: (1) Defendants were negligent, (2) Defendants’ negligence was a substantial factor in causing harm to Plaintiff, and (3) Defendants were negligent in the maintenance of the property they leased or controlled. (Mot., p. 3.)

The Fox Defendants argue the evidence submitted to trial in December 2025 does not support the jury’s verdict as to any negligence on the part of the Fox Defendants. (Mot., p. 3.) The Fox Defendants stated that they would supplement their motion with a copy of the trial transcripts for the Court to consider in connection with their motion. (Mot., p. 3.) No supplement has been filed to date.

In opposition, Plaintiff argues that the Fox Defendants fail to cite to evidence or include any exhibits or declaration in their motion. (Opp., p. 1.) Further, Plaintiff notes that the Fox Defendants never supplemented their motion as they stated they would. (Opp., p. 1.)

The Fox Defendants’ motion to vacate the judgment is denied. At the outset, the Court observes that Section 663 does not authorize the Court to reweigh evidence or reconsider factual disputes; instead, it permits correction of a judgment that is legally erroneous on its face. The Fox Defendants have not shown that the verdict is legally erroneous on its face. Moreover, in addition to the fact that the Fox Defendants never supplemented their motion with a copy of the trial transcripts, it is insufficient to argue in conclusory fashion that the evidence does not support the jury’s verdict without pointing to specific testimony, exhibits, or facts. [FN4] Because their motion fails to identify specific facts or evidence, fails to advance any argument applying the law to the facts, and relies solely on conclusory assertions, the motion is denied. [FN5]

2. Plaintiff’s Motion for a New Trial

Legal Standard

A verdict may be vacated in whole or in part, for “[e]xcessive or inadequate damages,” but a new trial may not be granted on that ground “unless after weighing the evidence the court is convinced from the entire record, including reasonable

inferences therefrom, that the . . . jury clearly should have reached a different verdict or decision.” (Code Civ. Proc., § 657.) A conditional additur is permitted only where “an order granting a new trial limited to the issue of damages would be proper.” (Code Civ. Proc., § 662.5, subd. (a)(1).)

“The amount of damages is a fact question, first committed to the discretion of the jury and next to the discretion of the trial judge on a motion for new trial,” and “all presumptions are in favor of the decision of the trial court.” (Audish v. Macias (2024) 102 Cal.App.5th 740, 752 (“Audish”).) Non-economic injuries “are subjective, and the determination of the amount of damages by the trier of fact is equally subjective.” (Id.) “[A]n award that does not account for pain and suffering is ‘not necessarily inadequate as a matter of law’. . . and . . . [e]very case depends upon the facts involved.” (Id.)

Discussion

Plaintiff moves for an order granting a new trial, pursuant to Code of Civil Procedure sections 657 and 662.5. The motion is directed to the Phase 2 damages verdict returned on July 13, 2026. In that verdict, the jury awarded \$1,272,640 in future medical expenses and \$71,000 in past non-economic damages, but \$0 in future non-economic damages.

Plaintiff argues that, when the jury found Plaintiff needed future medical treatment, they impliedly found he would continue to suffer future non-economic harm. (Mot., p. 4.) The Court disagrees. In Audish, the Court of Appeal affirmed a \$0 future non-economic award notwithstanding an award of future medical expenses. (Audish, supra, 102 Cal.App.5th 740.) There, the court determined that the evidence of the plaintiff’s improving physical and cognitive conditions, and “the absence of evidence that he will need to endure especially physically painful or intensive medical treatments in the future,” supported the jury’s decision not to award future noneconomic damages. (Id. at p. 754.)

In arguing that the \$0 award for Plaintiff’s future non-economic damages is inadequate as a matter of law, Plaintiff principally invokes *Dodson v. J. Pacific, Inc.* (2007) 154 Cal.App.4th 931. (Mot., p. 12.) However, *Dodson* involved a verdict that awarded economic damages while denying all non-economic damages to a plaintiff even though he had undergone a serious surgical procedure that the special verdict attributed to the accident. (*Dodson*, supra, Cal.App.4th at p. 938.) In light of that surgical procedure, the *Dodson* court determined that the plaintiff “must necessarily have endured at least some pain and suffering,” such that the award could not “be zero.” (Id.) A judgment for no more than medical expenses is inadequate where “the right to recover is established, and there is also proof that the medical expenses were incurred because of defendant’s negligent act.” (Id.)

The premise of *Dodson* is that a verdict that fails to compensate for pain and suffering at all is inadequate as a matter of law. Here, by contrast, the jury did compensate Plaintiff for pain and suffering. The jury awarded \$71,000 for past non-economic loss, including physical pain, mental suffering, humiliation, anxiety, and emotional distress. (Kopple Decl., ¶ 2, Ex. A.) In so doing, the jury accounted for the pain and suffering Plaintiff suffered from the time of the incident in 2019 to the time of the trial on damages in 2026, but determined that Plaintiff’s future non-economic damages were \$0.

Future non-economic harm must be proven to be a reasonable degree of certainty, and the jury here could rationally find that burden unmet. (See Audish, supra, 102 Cal.App.5th at p. 753.) The determination of the amount of damages is subjective and committed to the discretion of the trier of fact. (Id. at p. 752.) On this record, a rational jury could find that Plaintiff did not carry that burden as to future non-economic harm, even while accepting that he will incur future medical costs. After all, the jury could have rationally concluded that Plaintiff required future treatment while concluding that the treatment would manage Plaintiff’s symptoms.

Plaintiff argues the future medical award is an implicit finding of future non-economic harm because the treatments address pain and other intangible symptoms. (Mot., p. 12.) However, the experts testified to a \$6.7 million life care plan, and the jury awarded \$1.27 million. Having significantly discounted the recommended care, the jury did not adopt in totality the experts’ characterization of Plaintiff’s future life care plan. The Court obviously cannot be sure which components of care the jury credited and rejected. Nevertheless, a finding that future care is reasonable and attributable to the incident is not the same as finding that Plaintiff will, to a reasonable certainty, endure future pain and suffering of independent compensable value.

Because the \$0 future non-economic award is not inadequate as a matter of law, and the Court is not persuaded the jury clearly should have reached a different result, the threshold for a new trial under section 657 is not met. Further, a conditional additur under section 662.5 is available only where “an order granting a new trial limited to the issues of damages would be proper.” (Code Civ. Proc., § 662.5.) Accordingly, the alternative request for additur is denied as well.

Based on the foregoing, Plaintiff Abel Chavez’s motion for new trial is DENIED. Plaintiff’s alternative request for a conditional additur is DENIED.

[FN1] During trial, as to the Fox Theater defendants, Plaintiff only proceeded against Pomona Fox Theater LLC and Pomona Fox Theater Manager, LLC, dismissing Pomona Fox Master and Pomona Fox Concessions.

[FN2] The alter ego bench trial ultimately did not occur, as the parties entered into a stipulation that Melnick and S&J Pomona were alter egos of one another, with each agreeing to be personally responsible for any judgment or award of damages against the other. (See Order On Stipulation Re Alter Ego dated 5/08/2026.)

[FN3] That said, the supplemental points and authorities in support of the motion filed on September 16, 2026, at 5:08 p.m., is grossly untimely and thus is not considered the Court.

[FN4] As noted in footnote 3, the Court declines to consider the Fox Defendants’ grossly untimely supplemental submission filed on September 16, 2026. That said, the Court notes that even this untimely submission does not appear to include trial transcripts or discussion of specific evidence. Moreover, the argument raised in the untimely submission – regarding the lack of a court finding as to whether a duty of care was owed by each of the Fox Defendants – is not a proper challenge under Section 663.

[FN5] The Fox Defendants’ motion also reflects non-compliance with Rule 3.1113 of the California Rules of Court, which requires the memorandum supporting the motion to “contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in the support of the position advanced.”